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Case Number: 23STCV31263 Hearing Date: August 3, 2026 Dept: 510

No.

5 - Dr. Sandra Lee v. Los Angeles Community College District, et al.

Defendants'

Three Motions to Compel Further Responses to Special Interrogatories

Defendants

Dr. Seher Awan and Dr. Francisco Rodriguez move to compel Plaintiff Dr. Sandra Lee to provide further responses to special interrogatories, set two, nos. 15-16, 18, 20-22, and 24-25. Defendant Los Angeles Community College District moves to compel Plaintiff to provide further responses to special interrogatories, set three, nos. 58-59, 63-65, and 67-68. Because these three motions contain substantial overlap, the Court will address them together.

Meet

and Confer

Motions

to compel further responses must include "a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2030.300(b)(1).) The moving party must make a "reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) This rule aims "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.)

Plaintiff argues that Defendants did

not meet and confer in good faith before filing this motion. Specifically,

Plaintiff contends that Defendants gave her only two days to supplement her discovery responses. (Gallagher Decl., ¶ 1; see also Ex. 1.) The Court agrees that giving a party only two days to prepare responses to numerous disputed discovery requests normally evidences a lack of good faith. However, here, Defendants report that, despite the two-day deadline, Plaintiff unilaterally granted herself a one-week extension. (See Reply, at p. 5.) Even so, Plaintiff did not supplement the responses by her own deadline, nor request additional time. (Ibid.) Further, Defendants did not file these motions until June 5, 2026, which was one week after Plaintiff's own deadline. These circumstances demonstrate that further meet and confer would likely have been futile to encourage Plaintiff to timely serve supplemental responses and resolve the discovery dispute.

The
Court exercises its discretion to consider the merits of the discovery disputes.

On
a related note, the Court acknowledges that special interrogatory no. 18 was not discussed during the parties' meet and confer efforts. Defendants do not dispute this in their reply. Therefore, the Court will not analyze Plaintiff's response to interrogatory no. 18, and the motion to compel a further response is denied.

Further
Responses

Defendants moves to compel further responses to special interrogatories, set two, nos. 15-16, 20-22, and 24-25, and special interrogatories, set three, nos. 58-59, 63-65, and 67-68. A requesting party may move to compel further responses if "[a]n answer to a particular interrogatory is evasive or incomplete," or "[a]n objection to an interrogatory is without merit or too general." (Code Civ. Proc., § 2030.300(a).) The Court exercises its discretion to consider the content of Plaintiff's supplemental responses served on July 14, 2026 when ruling on this motion.

Plaintiff's
further responses to special interrogatories set two, nos. 15-16 and 20-21, and special interrogatories, set three, nos. 58-59 and 63-64 are code-compliant. The interrogatories generally ask Plaintiff to "IDENTIFY all facts that support YOUR contention that [identified witness] has knowledge to support YOUR

allegations against [Defendant].” While Plaintiff’s prior responses consisted of a litany of objections, the most recent further responses provide straightforward responses to these interrogatories. For example, for interrogatory no. 21, Plaintiff responded, “Without waiving attorney client privilege or work product, Chris Ozan was the SEIU 99 Representative at LASC during Plaintiff’s employment. In general he would know of plaintiff’s character, her passion to help others and to speak out, he may know of other complaints other had against Defendants and the lack of response from LACCD.” (Gallagher Decl., Ex. 4, at p. 12.) This response is not evasive. In reply, Defendants do not meaningfully explain why these substantive further responses remain deficient.

However,

Plaintiff provided evasive responses to special interrogatories, set two, nos. 22 and 24-25, and special interrogatories, set three, nos. 65 and 67-68. In response to the requests for facts supporting Plaintiff’s contention that the witness has knowledge, she generally responded, “Plaintiff does not currently know what facts [identified witness] knows or does not know – discovery and depositions are pending.” This is nonresponsive. The interrogatory does not ask what the witness knows—it asks for the facts supporting Plaintiff’s contention that the witness may have knowledge.

In

addition, Plaintiff provided meritless objections to these requests. She objected based on attorney-client privilege, work product protections, overbreadth, burden, and third-party privacy rights. Generally, after the requesting party moves to compel further responses, the responding party bears the burden of justifying its objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Plaintiff does not substantiate her objections. The objections to special interrogatories set two, nos. 22 and 24-25, and special interrogatories, set three, nos. 65 and 67-68 are overruled.

Sanctions

Defendants move for a total of \$6,000 in sanctions across all three motions. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2031.310(h).)

The Court declines to impose sanctions here. As pointed out by Plaintiff, Defendants' notices of motion fail to identify against whom the sanctions are sought as required under Code of Civil Procedure section 2023.040.

Disposition

Defendants Dr. Seher Awan and Dr. Francisco Rodriguez's motions to compel Plaintiff Dr. Sandra Lee to provide further responses to special interrogatories, set two are granted in part. Plaintiff is ordered to serve further verified responses without objections to nos. 22 and 24-25 within 21 days. The motions are denied with respect to the remaining interrogatories.

Defendant Los Angeles Community College District's motion to compel Plaintiff Dr. Sandra Lee to provide further responses to special interrogatories, set three is granted in part. Plaintiff is ordered to serve further verified responses without objections to nos. 65 and 67-68 within 21 days. The motion is denied with respect to the remaining interrogatories.